



EAGLE MOUNTAIN CITY COUNCIL MEETING MINUTES

September 6, 2022, 4:00 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

4:00 P.M. WORK SESSION – CITY COUNCIL CHAMBERS

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Carolyn Love and Brett Wright. Councilmember Jared Gray was excused.

ELECTED OFFICIALS PRESENT ELECTRONICALLY: Councilmembers Donna Burnham and Colby Curtis.

CITY STAFF PRESENT: Paul Jerome, City Administrator; Steve Mumford, Assistant City Administrator/Community Development Director; Robert Hobbs, Planning Manager; David Stroud, Senior Planner; Fionnuala Kofoed, Director of Administrative Services/City Recorder; Chris Trusty, City Engineer; Aaron Sanborn, Economic Development Director; Jeremy Cook, City Attorney; Brad Hickman, Parks and Recreation Director; Mack Straw, Public Utilities Manager; Zac Hilton, Streets and Storm Drain Manager; Tyler Maffitt, Communications Manager; Embret Fossum, UFA Battalion Chief; Eric McDowell, Chief Deputy Sheriff; and Evan Berrett, Assistant to the City Administrator.

CITY STAFF PRESENT ELECTRONICALLY: Kimberly Ruesch, Finance Director; Jeff Weber, Fleet and Facilities/Operations Director; Michele Graves, and Chas Glenn, Administrative Assistant.

Mayor Westmoreland called the meeting to order at 4:09 p.m.

1. CITY ADMINISTRATOR INFORMATION ITEMS

1.A. UPDATE – City Administrator Items

Communications

- The communication standards and practices update is ongoing and will be presented at a future meeting once the events portion has been finalized.
- Progress on Rock Solid's OneView is on track to be completed within the next 60 days.
- News articles relevant to topics on City business are available online at eaglemountaincity.com/news.

Engineering

- The City Engineer designed a non-typical layout to resolve Rocky Mountain Power's concerns due to the proximity of overhead powerlines to the Woodhaven Boulevard traffic light.
- Construction activities on Eagle Mountain Boulevard are scheduled for completion on November 9, 2022.

Parks, Recreation, Events, and Cemetery

- Concept layouts for Walden Park are being modified to accommodate observatory needs. Staff will meet with the architect on September 14th to discuss the changes and begin construction documents.
- The layout for the skate park at Smith Ranches has been finalized. Staff will begin the construction documents and will meet with Big T Recreation on Thursday to discuss final plans for the playground equipment.
- Eagle Mountain Serves service projects and activities will be held from September 12th to 17th. Residents are encouraged to participate. More information is available at <https://emserves.org/> and <https://www.justserve.org>.
- Shopfest Utah will be held on September 10th at Cory Wride Memorial Park.
- A community tree planting event in partnership with Tree Utah is scheduled for September 30th at 1:00 p.m. at Walden Park. A star gazing event will follow beginning at 7:30 p.m.

Community Development

- A request for proposals for architect services will close on September 13th.
- The Tickville Wash hydrology study between Porters Crossing and the eastern border of the City is ongoing. Flagship Homes has made improvements to the wash to repair storm damage.
- Staff continues work on the updated zoning map.
- An updated master development agreement for Eagle Quest will be presented to the Planning Commission. The Porter's Crossing Town Center project was tabled at a Planning Commission meeting and will be placed on a future meeting agenda. The Pole Canyon project will be presented at a Planning Commission work session later this month.
- Upcoming development projects include Lower Hidden Valley concept plans, Harmony A-14 site plan, Parkway Fields Phase C site plan and preliminary plat, Applebee's site plan, the McLachlan Industrial rezone, and Wildlife Overlay Zone updates.
- In August, 36 single-family, 11 multifamily, 44 basement, 35 solar, 20 miscellaneous, and 4 commercial building permits were issued. Completed commercial projects in August include Cascade Collision, an Atlas Tower cell tower, and Marketplace pads E and G. A temporary certificate of occupancy was issued for Little Caesars, a tenant improvement permit was issued for Great Clips, and two permits were issued for Facebook building 2 for the foundation and shell.

City Engineer Chris Trusty explained staff is researching the alignment of Old Airport Road with the future Cedar Valley Freeway to determine the appropriate placement and right-of-way acquisition that needs to be secured before the project can be sent out for bids.

2. AGENDA REVIEW

10. BID AWARDS

- 10.A. Nine 2023 Ford F-150 Trucks, One 2023 Ford Transit Van – Ken Garff Ford (State Contract)

Fleet and Facilities/Operation Manager Jeff Weber explained the transit van will be used for well sampling and bacteria testing. A van is needed to accommodate a refrigerator to keep the samples sanitary and at the appropriate temperature.

10.C. Well #8 Design – Jones and DeMille

10.D. Well #8 Drilling – Grimshaw Drilling

Mr. Trusty said any equipment not required for Well #7 will be used for Well #8. The project utilizes companies that have worked with the City previously or are working on other wells in order to expedite the project as much as possible for the well to be operational by next year.

Councilmember Love expressed her support to provide resources so the well is operational prior to being needed.

12.B. Wastewater Treatment Plant Expansion Change Order #4 – Aqua Engineering

Mr. Trusty confirmed that the contractor went beyond the scope of what the City had hired them to do; however, the City benefited from the work and likely would have added the work to the contract. Representatives from Aqua Engineering acknowledged that they had performed work that they were not under contract for and they were willing to write off the full amount. Staff recommends paying half of the amount for the uncontracted work; however, it is at the purview of the Council to determine how much, if anything, to pay.

The Council discussed the amount they felt would be appropriate to pay for uncontracted services.

Mr. Trusty stated that the staff-recommended compensation was based upon fairness rather than a cost-of-work metric. The additional work was performed over the course of a year and included a contractor being onsite for a weekly meeting, the review of submittal materials to certify they met the specifications in the bid documents, and review of pay applications to ensure the work had been completed and the materials had been delivered.

Mayor Westmoreland stated he was comfortable with staff's recommendation, recognizing the subjectiveness of deciding the appropriate amount of compensation.

Councilmember Curtis stated that he is willing to pay the half compensation; however, he would like to devise a mechanism to prevent future misunderstandings.

City Administrator Paul Jerome noted this is the first instance of an issue; nevertheless, protections can be put in place to mitigate repeat occurrences.

Councilmembers Burnham, Wright, and Love concurred that they would be comfortable approving the half payment with the understanding a process will be implemented to avoid future misunderstandings with the scope of work agreed upon in City contracts.

13. MINUTES

13.A. August 16, 2022 Minutes – Regular City Council Meeting

Councilmember Wright requested staff review the figures presented in the staff report for the previously approved unit count for the Eagle Heights Village project to verify that the unit numbers on pages five and eight of the minutes correctly reflect the originally approved number of duplex units.

14. PRELIMINARY PLATS & SITE PLANS

14.A. PRELIMINARY PLAT – Browns Meadow

Planning Manager Robert Hobbs presented and reviewed the status of the project. The Browns Meadow application is for 45.133 acres currently zoned Agriculture/Rural Density 2. The preliminary plat was reviewed by the City Council on May 3, 2022 and was tabled due to a future collector road on the Master Transportation Plan bisecting Browns Meadow. The Master Transportation Plan is on an upcoming Planning Commission agenda, and it includes the recommendation that the collector road be changed to a local street with additional setbacks, should the need to widen the road arise in the future.

Discussion ensued regarding the vested and proposed unit counts and potential density transfers in Pole Canyon and the impact on City transportation needs.

Councilmember Love expressed concerns regarding a rural-width road and approving the development before approval of the Master Transportation Plan.

Councilmember Wright agreed with Councilmember Love. Although he appreciates the project and desires this type of development within the City, it is important to verify that the plan fits the overall infrastructure. He suggested tabling the item until after the approval of the Master Transportation Plan.

Councilmember Burnham stated that if Mr. Trusty is able to confirm the density and road infrastructure for Pole Canyon prior to policy session to verify that a collector road is not needed in this location, she would be in favor of reviewing rather than tabling the application.

Councilmember Curtis said although he is in favor of the project, due to the number of units in this area of the City, he is concerned with the impact on the overall transportation network.

14.B. PRELIMINARY PLAT AMENDMENT – Overland Village 2 Phase A

Senior Planner David Stroud presented the item. The application is to increase Phase A from 375 dwellings on 89.29 acres to 388 dwellings on 91.62 acres. Overland Village 2 has a maximum unit count of 743 dwellings.

Discussion clarified that the park is not located in Phase A and if the park were still required with the 200th dwelling, no homes would be constructed near the location at the time of the park's installation.

Councilmember Wright expressed concern about the uncertainty of the timing of the completion of the park.

Councilmember Curtis stated that the proposal front-loads the density and backloads the amenities, which fails to meet the spirit of the Municipal Code requirements. It would be reasonable to require the park to be completed at the beginning of the second phase, unless precluded by the master development agreement (MDA). Councilmember Burnham supported Councilmember Curtis' suggestion.

Assistant City Administrator/Community Development Director Steve Mumford noted that the school will have a playground and field areas available for residents' use during non-school hours. The applicant had indicated that the location of the park was in part due to the proximity of the pool and clubhouse in Village One to these units.

Discussion ensued regarding the dwelling unit number, the park escrow that would be held until park completion with consideration of the impact of inflation, and the calculation of a time frame requirement in addition to a dwelling unit count.

Councilmember Wright concurred with concerns that the plan has been phased in a way that is not in harmony with Municipal Code density and amenity requirements, and with a second request to further delay the development of a park within the Overland development.

The Council determined to remove the item from the consent agenda for further discussion during policy session when the applicant will be present.

14.C. SITE PLAN – Alpine School District Elementary School #110

Discussion ensued regarding potential school crossing and traffic light locations.

Councilmember Love requested a safe route to the school be identified for the project.

Parks and Recreation Director Brad Hickman explained that Municipal Code has standards for tree spacing, distance from regulatory signs, and clear vision triangles at intersections to prevent the obstruction of motorist visibility.

Mr. Stroud confirmed that Ivory Homes is working with Alpine School District to widen the road on the south side to accommodate parallel parking in front of the school.

Councilmember Love expressed her support for the addition of parallel parking in front of the school and requested parallel parking along streets in front of schools become a standard for the City.

Councilmember Wright requested the City adopt parking standards for schools and suggested including parallel parking in front of the school as a requirement.

15. RESOLUTION

- 15.A. A Resolution of Eagle Mountain City, Utah, Approving the Third Amendment to Amended and Restated Master Development Agreement for Overland Development and Pony Express Parcel.

Councilmember Curtis advocated for considering the impact on resident homeowners association fees should additional clubhouses be desired with future applications in the development. He is concerned with the request that the park be completed towards the end of the development and the potential for the park to be further delayed or not completed. He suggested adding a completion deadline while retaining the dwelling number requirement. Where the infrastructure will not reach the park until the end of the development of the phase, he inquired if the park is centrally located, as required.

The Council determined to remove the item from the consent agenda for further discussion during policy session when the applicant will be present.

16. ORDINANCES/PUBLIC HEARINGS

- 16.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Enacting Eagle Mountain Municipal Code Chapter 13.12 Small Cell Communications Facilities.

Assistant to the City Administrator Evan Berrett stated the standards have been updated from when they were previously presented to address Council concerns regarding the number of potential pole locations by emphasizing the City's preference for colocation of equipment on poles and minor corrections identified by the Planning Commission. He explained that the height limitation of structures used for collocation of small wireless facilities to not exceed 40 feet is to prevent the equipment from causing weight ratio issues that can occur when the units are placed toward the top of taller poles. The State prohibits the equipment from being installed higher than 50 feet on a residential street. The City could impose a lower height requirement; however, if the height is too restrictive, it will reduce signal strength and potentially render the equipment nonfunctional. The fee schedule is based on State guidelines and requirements.

Councilmember Curtis expressed concern with the standard exemptions. He advocated for the requirements to be enforced as much as possible and for reducing constraints in the future if deemed necessary and if the situation meets specified qualification criteria. As such, he suggested either removing or creating exception criteria for Sections 13.12.030(B) and 13.12.045(C).

Mr. Berrett clarified that Section 13.12.045(C) allows the City Engineer to review the plans of the applicant to determine if existing utility poles could be modified or replaced rather than adding an additional pole, and if more equipment can be added to poles that already have 5G equipment. Councilmember Curtis withdrew his concern after Mr. Berrett's explanation.

Councilmember Love said she feels the exceptions are reasonable with the assumption that the first provider will need to install many poles as the City is unlikely to have sufficient existing poles in the needed locations.

3. ADJOURN TO A CLOSED EXECUTIVE SESSION

MOTION: *Councilmember Curtis moved to adjourn a closed executive session for the purpose of discussing reasonably imminent litigation and the deployment of security devices or systems, pursuant to Section 52-4-205(1) of the Utah Code, annotated. Councilmember Wright seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Excused</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

The meeting was adjourned at 6:09 p.m.

7:00 P.M. POLICY SESSION – CITY COUNCIL CHAMBERS

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Carolyn Love and Brett Wright.

ELECTED OFFICIALS PRESENT ELECTRONICALLY: Councilmembers Donna Burnham and Colby Curtis. Councilmember Jared Gray joined the meeting at 9:38 p.m.

CITY STAFF PRESENT: Paul Jerome, City Administrator; Steve Mumford, Assistant City Administrator/Community Development Director; Robert Hobbs, Planning Manager; David Stroud, Senior Planner; Fionnuala Kofoed, Director of Administrative Services/City Recorder; Chris Trusty, City Engineer; Aaron Sanborn, Economic Development Director; Jeremy Cook, City Attorney; Embret Fossum, UFA Battalion Chief; Eric McDowell, Chief Deputy Sheriff; and Evan Berrett, Assistant to the City Administrator.

CITY STAFF PRESENT ELECTRONICALLY: Kimberly Ruesch, Finance Director; Brad Hickman, Parks and Recreation Director; Mack Straw, Public Utilities Manager; Jeff Weber, Fleet and Facilities/Operations Director; and Tyler Maffitt, Communications Manager.

4. CALL TO ORDER

Mayor Westmoreland called the policy session to order at 7:35 p.m.

5. PLEDGE OF ALLEGIANCE

Councilmember Wright led the Pledge of Allegiance.

6. INFORMATION ITEMS/UPCOMING EVENTS

- After cancellation due to weather, Eagle Mountain City has rescheduled the Movie in the Park to September 17th at 8:00 p.m. at Silverlake Amphitheater.
- Shopfest Utah will be held on September 10th at Cory Wride Memorial Park. We encourage residents to patronize Eagle Mountain's ultimate shopping experience. Visit shopfestutah.com for more information.
- The splash pad at Cory Wride Memorial Park is now closed for the year. We would like to thank Eagle Mountain families for their continued use of the service. The City would like to remind residents that there is one last chance to take advantage of the splash pad, which will be reopened on Saturday, September 10th coinciding with Shopfest.

To receive City notifications, including emergency info, news events, and traffic alerts, sign up at emcity.org/notifyme.

7. PUBLIC COMMENTS

Mayor Westmoreland opened public comment at 7:38 p.m.

Peggy Hunziker expressed displeasure with the lack of a turnout lane on the second access for White Hills, the granting of certificates of occupancy before the completion of the second access, the building of horse corrals on residential property, and the delays on the park extension.

Assistant City Administrator/Community Development Director Steve Mumford explained the second access has been delayed awaiting a permit from the Utah Department of Transportation. The Fire Marshal verified that the gated access fulfills the safety requirement for a second emergency access until the installation of the turn lane can be completed.

Staff clarified that the City was paying for the bonds to construct the sewer and incurring other expenses for White Hills before the collection of revenue from the residents for sewer.

Bruno Hunziker requested additional amenities at the park in White Hills and staff to follow up with them regarding their grievances. He is concerned with the delays in installing the second access. He requested Code Enforcement visit the area and issue citations.

Julie Myers said she feels that a resident installing a horse barn on his property is not in harmony with the Pole Canyon Master Plan.

Jeff Ruth thanked City employees for assisting with the blood drive. Nineteen units of blood were donated, three from first-time donors. Another blood drive will be held on December 30th. He beseeched the City to reconsider rental licensing to help resolve noise nuisances and other issues in his neighborhood.

Mayor Westmorland closed public comment at 7:59 p.m.

8. CITY COUNCIL/MAYOR'S ITEMS

Councilmember Wright

Councilmember Wright expressed his gratitude to meeting participants and residents for voicing their concerns. He thanked staff for their efforts to mitigate concerns. He promised to work to make the City better.

Councilmember Love

Councilmember Love echoed the sentiments and appreciation shared by Councilmember Wright.

Councilmember Curtis

Councilmember Curtis thanked the Mayor, Councilmembers, and staff for their work.

Councilmember Burnham

Councilmember Burnham concurred with the appreciation shared by the other Councilmembers. She appreciates the ability to attend remotely.

9. APPOINTMENT

9.A. Alternate Planning Commissioner

MOTION: *Councilmember Curtis moved to appoint Brent Strong as an Alternate Planning Commissioner for a term through December 2024. Councilmember Love seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Excused</i>
☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☐ Jared Gray	☐ Jared Gray	☐ Jared Gray	☒ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

CONSENT AGENDA

10. BID AWARDS

- 10.A. Nine 2023 Ford F-150 Trucks, One 2023 Ford Transit Van – Ken Garff Ford (State Contract)
- 10.B. Storm Drain Impact Fee Facilities Plan Update – JWO Engineering
- 10.C. Well #8 Design – Jones and DeMille
- 10.D. Well #8 Drilling – Grimshaw Drilling

11. BOND RELEASES

11.A. Smith Property, E Cedar View Lane – Into Warranty

11.B. Brandon Park Phase A, Plat 13 – Out of Warranty

11.C. Overland Phase B, Plat 1 – Out of Warranty

12. CHANGE ORDERS

12.A. Eagle Mountain Boulevard Widening Project Change Order #1 – WW Clyde

12.B. Wastewater Treatment Plant Expansion Change Order #4 – Aqua Engineering

13. MINUTES

13.A. August 16, 2022 Minutes – Regular City Council Meeting

14. PRELIMINARY PLATS & SITE PLANS

14.A. PRELIMINARY PLAT – Browns Meadow

14.B. PRELIMINARY PLAT AMENDMENT – Overland Village 2 Phase A

14.C. SITE PLAN – Alpine School District Elementary School #110

14.D. SITE PLAN – LDS North Meetinghouse Expansion

14.E. SITE PLAN – LDS Overland Meetinghouse

15. RESOLUTION

15.A. A Resolution of Eagle Mountain City, Utah, Approving the Third Amendment to Amended and Restated Master Development Agreement for Overland Development and Pony Express Parcel.

Councilmember Wright verified with staff that the number of approved units for the Eagle Heights Village project should be 148 rather than 138 and requested pages five and eight of the minutes be amended to reflect the correct number.

MOTION: *Councilmember Wright moved to approve the consent agenda removing items 14.A. Browns Meadow Preliminary Plat, 14.B. Overland Village 2 Phase A Amended Preliminary Plat, and 15.A. a Resolution of Eagle Mountain City, Utah, Approving the Third Amendment to the Amended and Restated Master Development Agreement for Overland Development and Pony Express*

Parcel, and placing them as scheduled items, and the correction to the minutes as discussed. Councilmember Love seconded the motion.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Excused</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

SCHEDULED ITEMS

14. PRELIMINARY PLATS & SITE PLANS

14.A. PRELIMINARY PLAT – Browns Meadow

Planning Manager Robert Hobbs reviewed the preliminary plat as presented during work session.

City Engineer Chris Trusty stated he spoke with Hales Engineering and modeling with either the vested or proposed density, a collector road is not required for that area. However, Pole Canyon Boulevard may need to be widened from a collector to a minor arterial. The majority of the traffic will be to the north and the east of this location. The study does not distinguish between a rural or local width road. Future connections to this development would be Pole Canyon Boulevard to the east and 4000 North to the north.

Councilmember Burnham said that based upon the information provided by Mr. Trusty, she feels the Council should be able to make a decision on the application rather than tabling and further postponing the project.

Councilmember Curtis expressed concern about allowing a rural street and would prefer a local right-of-way width.

Councilmember Wright said he believes the reason for requesting a rural right-of-way is due to the intended use of the properties as agricultural and rural lots. He noted that the application proposes septic tanks which will require redundant drain fields and a rural road would be more conducive to equestrian uses.

Mr. Trusty confirmed that the development meets the requirements to be allowed septic tanks and no culinary wells are planned in proximity to the area.

MOTION: *Councilmember Wright moved to approve the Browns Meadow Preliminary Plat. Councilmember Burnham seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Excused</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☐ <i>Colby Curtis</i>	☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☒ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a vote of 3:1.

14.B. PRELIMINARY PLAT AMENDMENT – Overland Village 2 Phase A

Items 14.B. and 15.A. were presented and discussed concurrently.

Senior Planner David Stroud presented the preliminary plat amendment. The application proposes an increase in acreage from 89.29 acres to 91.62 acres, a decrease in open space from 10.01 acres to 9.17 acres, and an increase in density from 375 dwellings with 4.20 units per acre to 388 dwellings with 4.23 units per acre. The maximum allowed number of units in Overland Village 2 is 743 dwellings. The plan would decrease the single-family units from 220 to 218 and increase the townhome units from 155 to 170.

The Planning Commission held a public hearing on August 23, 2022, and reviewed the proposed amended preliminary plat and recommended approval with the following conditions:

1. The City Council approves the third master development agreement amendment to require the Club Ivory or medium park at the 500th platted dwelling;
2. The amended preliminary plat is subject to the original conditions of approval, where applicable; and
3. Redlines corrected prior to scheduling with the City Council.

Mayor Westmoreland reviewed the work session discussion of the item and noted the importance of providing parks for residents and the difficulties with determining the appropriate timing of park installation. He stated this developer has been a good partner to the City and has been accommodating.

Councilmember Burnham stated she would be more comfortable with amending the requirement to the 400th rather than 500th platted dwelling unit.

Councilmember Curtis agreed with the recommendation for the requirement to be the 400th unit. He would prefer to also require a completion deadline for the park; however, he is unsure how to calculate the appropriate date.

MOTION: ***Councilmember Wright moved to approve the preliminary plat for Overland Village 2 Phase A with the following conditions:***

- 1. Individual site plans are not required for the townhomes in this plat;***
- 2. The applicant shall submit plans for mailbox locations, including pullouts or temporary parking areas to improve traffic flow;***

3. *Privacy fencing, in compliance with EMMC 17.60.110, shall be installed along Pony Express Parkway and Airport Road;*
4. *The plans shall comply with the Eagle Mountain Dark Sky Ordinance (EMMC 17.56);*
5. *The applicant shall work with the school district to resolve parking and traffic flow issues/concerns;*
6. *This site plan shall be expanded to include the areas north of the twenty townhomes in Parcels D and Parcel E and a minimum of 50% sod shall be provided in that area;*
7. *The applicant shall amend Section 11.4.4 of the MDA if the required medium park is not completed at or before recording the 400th unit;*
8. *The future amenity area shall include a 3,000 square-foot pool and a 1,200 square-foot clubhouse as proposed by the applicant; and*
9. *The applicant shall follow localscape recommendations in the native open space areas.*

Councilmember Love seconded the motion

AMENDED MOTION: *Councilmember Wright moved to approve the preliminary plat for Overland Village 2 Phase A with the following conditions:*

1. *The City Council approves the third master development agreement amendment to require the Club Ivory or medium park at the 400th platted dwelling;*
2. *The amended preliminary plat is subject to the original conditions of approval, where applicable; and*
3. *Redlines corrected prior to scheduling with the City Council.*

Councilmember Love seconded the motion.

AMENDED MOTION: *Councilmember Wright moved to approve the preliminary plat for Overland Village 2 Phase A with the following conditions:*

1. *The City Council approves the third master development agreement amendment to require the Club Ivory or medium park at the 400th platted dwelling;*
2. *The amended preliminary plat is subject to the original conditions of approval, where applicable;*
3. *Redlines corrected prior to scheduling with the City Council; and*
4. *The applicant shall be allowed to install either a medium park or Club Ivory as permitted in the master development agreement rather than be required to provide the 3,000 square foot pool and 1,200 square foot clubhouse required in condition #8 in the approval of the original preliminary plat.*

Councilmember Love seconded the motion.

Those Voting Yes

- ☒ *Donna Burnham*
☒ *Colby Curtis*
☐ *Jared Gray*

Those Voting No

- ☐ *Donna Burnham*
☐ *Colby Curtis*
☐ *Jared Gray*

Those Abstaining

- ☐ *Donna Burnham*
☐ *Colby Curtis*
☐ *Jared Gray*

Those Excused

- ☐ *Donna Burnham*
☐ *Colby Curtis*
☒ *Jared Gray*

☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

15. RESOLUTION

15.A. A Resolution of Eagle Mountain City, Utah, Approving the Third Amendment to Amended and Restated Master Development Agreement for Overland Development and Pony Express Parcel.

Mr. Stroud presented the item. The current MDA requires a clubhouse or medium park for Village 2 prior to the 200th dwelling unit occupancy. The applicant requests an amendment to require the clubhouse or medium park prior to the 500th dwelling due to infrastructure issues. The first amendment to the MDA was a similar request to alter the requirement for the clubhouse in Village 1 from the permit for the 150th dwelling to the 350th dwelling. The Planning Commission reviewed the item on August 23, 2022, and recommended approval to the City Council.

Applicant Brad Mackay explained that he assumed responsibility for the project last winter after the initial approval. He found errors in the project due to topographical and engineering challenges that placed the townhomes above fill resulting in water exposure requiring a 14-foot retaining wall. The proposed amendment improves the engineering and aesthetics of the plan by increasing the slope of the road and adding units with daylight basements. They agreed to widen the road in front of the elementary school. The total unit count for Village 2 will remain the same. He relocated a road bisecting the park to make the open space contiguous. They intend to build a park similar to their award-winning Hidden Valley Park in St. George to provide a quality amenity without increasing homeowner's association fees. He is amenable to the requirement being the 400th dwelling as the utilities would reach the park area by that stage of the development; however, construction of the units around the perimeter of the park would not be finished. The 500th dwelling unit would allow the completion of all units and infrastructure surrounding the park before park completion. The proposed amendments eliminate the need for a second sewer line to service Village 2.

MOTION: *Councilmember Wright moved to approve a resolution of Eagle Mountain City, Utah, approving the Third Amendment to the amended and restated Master Development Agreement for Overland Development and Pony Express Parcel with the following change to Section 11.4.4, "A Medium Park or Club Ivory (at Master Developer's discretion) shall be constructed and dedicated to the City (if that is required pursuant to Section 11.5) prior to recordation of a plat containing the 400th Residential Dwelling Unit in Village 2."*

Councilmember Love seconded the motion.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Excused</i>
☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis

☐ Jared Gray	☐ Jared Gray	☐ Jared Gray	☒ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

16. ORDINANCES/PUBLIC HEARINGS

16.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Enacting Eagle Mountain Municipal Code Chapter 13.12 Small Cell Communications Facilities.

Mayor Westmoreland opened the public hearing at 8:57 p.m. As there were no comments, he closed the hearing.

MOTION: *Councilmember Love moved to approve an ordinance of Eagle Mountain City, Utah enacting Municipal Code Chapter 13.12 Small Cell Communications Facilities striking, “Except for small wireless facilities on a residential street,” from Section 13.12.050(C). Councilmember Wright seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Excused</i>
☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☐ Jared Gray	☐ Jared Gray	☐ Jared Gray	☒ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

16.B. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending Eagle Mountain Municipal Code Chapters 7.10 Tree Planting and Care, 16.35 Development Standards for Required Public Facilities, 17.25 Residential Zones, and 17.60 Landscaping, Buffering, Fencing and Transitioning, Relating to Water Efficient Landscaping Standards.

Councilmember Love stated that she would prefer to be more conservative with the initial requirements.

Councilmember Wright agreed and suggested tabling the item and for the City to promote water conservation through example and incentivization rather than mandates.

Councilmember Burnham advocated for the importance and critical nature of protecting the water supply for the City. She feels it is unfair to require stricter standards for areas of preference, such as design standards, than in areas of necessary resources that impact the lives of the citizens.

Nevertheless, she is amenable to tabling the item for additional consideration and supports resident incentivization.

Councilmember Curtis noted the difference between requirements for corporations with standards that impact the choices of residents. He believes in the right and the freedom of residents to be able to choose for themselves.

Councilmember Love expressed concern that the proposed turf limitations are too restrictive. She supports prohibiting turf in park strips and on slopes greater than 25% and for trees to be in park strips rather than in the middle of the yard. She verified with staff that the commercial and institutional requirements would apply to churches. She is not in favor of permitting developers twelve months to finish the landscaping. She suggested nine months as an alternative and to apply the new standards only if changes to the home structure impact the landscaping.

Assistant to the City Administrator Evan Berrett explained that the majority of the proposed amendments are necessary for residents to be eligible for rebate programs such as Flip Your Strip. He clarified that the turf percentage limitations apply to the front and side yards but not the backyard. Other cities have opted to adopt the standards and focus enforcement efforts on new construction and developers.

City Administrator Paul Jerome noted that homeowners associations (HOAs) have elected to adopt and enforce water conservation standards independent of the City. Should residents remove the builder's landscaping to install more grass, they might exceed the water allocation for that property.

Discussion ensued regarding water conservation programs and potential resident incentives.

Councilmember Wright read a portion of a letter he received regarding the number of Eagle Mountain City residents utilizing water conservation programs and rebates. He desires to quantify the impact of not qualifying for the programs compared with providing incentives to residents such as discounts on rain-sensing sprinkler systems.

Mr. Berrett clarified that the primary reason for the standards is to protect the water supply to meet future City needs and reduce costs to residents incurred by nonfunctional turf rather than to qualify for rebate programs. Many residents lack the funds to make the changes to existing landscaping which is the reason for focusing requirements on providing compliant landscaping for new homes.

Councilmember Curtis reiterated that he would like to focus on City-owned and HOA-owned grass open space that could be converted to water-wise landscaping. He is concerned with the aesthetical impact of landscaping changes and is uncomfortable with the language recommended by the Central Utah Water Conservancy District, specifically sections 17.60.090 E, F, and G. He prefers to focus on things specific to local conditions and City-sponsored incentive programs.

Mayor Westmoreland opened the public hearing at 9:29 p.m.

Randy Smith with Fieldstone Homes said they are trying to implement water-wise landscaping in Antelope Meadows. He explained additional landscaping costs are factored into the home price and affordability is an issue with the current market and rising interest rates. He requested the amount of water required for development to coincide with this amendment and a balance between the benefits of water-wise landscaping and home prices.

Mayor Westmoreland closed the public hearing at 9:39 p.m.

Councilmember Burnham recommended limiting nonfunctional turf due to the Governor’s plans to prohibit nonfictional turf. She supports offering incentives and discounts to residents. The City could install grass varieties developed to need less water.

MOTION: *Councilmember Love moved to table an ordinance of Eagle Mountain City, Utah, amending Eagle Mountain Municipal Code Chapters 7.10 Tree Planting and Care, 16.35 Development Standards for Required Public Facilities, 17.25 Residential Zones, and 17.60 Landscaping, Buffering, Fencing and Transitioning, Relating to Water Efficient Landscaping Standards and direct staff to continue to work with Council to find implementable solutions. Councilmember Wright seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Excused</i>
☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☒ Jared Gray	☐ Jared Gray	☐ Jared Gray	☐ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a unanimous vote.

16.C. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Adopting an Updated Impact Fee Enactment for a Culinary Water Impact Fee; Providing for the Calculation and Collection of Such Fees; Providing for Appeal, Accounting, and Severability of the Same and Other Related Matters.

Fred Philpot with Lewis, Young, Robertson, and Burningham, Inc. presented the item. The Council had been presented the information in July 2022 and gave direction to address questions and make revisions and those directives have been resolved and completed. He reviewed the impact fee facilities plan (IFFP) and impact fee analysis (IFA) calculation process. They prepared two scenarios based upon development with and without water rights. Development within the service area may have access to culinary water through the Central Water Project (CWP) or City-developed water resources. The impact fee for developments with water rights is \$4,283 per equivalent residential unit (ERU) plus applicable reimbursement agreement fees. The impact fee for developments without water rights is \$2,445 plus CWP fees and applicable reimbursement agreement fees.

Mr. Trusty explained that the 0.53 acre-feet of water rights per ERU represent indoor water usage. The State recommends 0.45 acre-feet for indoor and 0.08 acre-feet for community parks and outdoor uses. The City bases the IFFP calculation on 0.9 acre-feet per ERU for combined indoor and outdoor uses.

Mayor Westmoreland the public hearing at 9:51 p.m. As there were no comments, he closed the hearing.

MOTION: *Councilmember Love moved to approve an ordinance of Eagle Mountain City, Utah, adopting an update impact fee enactment for a Culinary Water Impact Fee; providing for the calculation and collection of such fees; providing for appeal, accounting, and severability of the same and other related matters. Councilmember Wright seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☒ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

16.D. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Amending Eagle Mountain Municipal Code Chapter 16.35 Development Standards for Required Public Facilities, Relating to Public and Private Rights-of-Way Standards.

Mr. Hobbs presented the item. The proposed amendments are the results of a committee of staff and Councilmembers. The Planning Commission reviewed the item and held a public hearing on August 23, 2022; they recommended approval of the amendments.

The proposed changes to the standards incorporating the Planning Commission recommendations are as follows:

16.35.070 Streets and street systems

J. Street Design. The design of public and private streets shall be subject to the city's ordinances, standards and policies regarding construction and width, unless a deviation from such standards is an integral part of an increase in the quality of the development. Private streets, in all aspects of design or right-of-way width, shall meet the same standards as public streets -- save that private streets may be gated as may be allowed and regulated by emergency services.

L. Traffic Calming. ~~Traffic calming improvements and design shall be constructed on local streets. Traffic calming improvements include but are not limited to traffic~~

~~circles, curvilinear roads, narrowed intersections, and raised pedestrian walkways. Traffic calming design will include a mixture of street horizontal layouts, intersection designs, roadside designs that encourage drivers to reduce speeds, and conveniently placed collector roads that reduce overall traffic time. Traffic calming improvements shall be constructed on streets classified by the city as ‘locals’.~~ Traffic calming design elements shall only include any, or a mixture of, the following: street layouts that incorporate multiple acute angled curves and/or purposely designed intersection or roadway elements (e.g., bulb or bump-outs, planter islands, chokers, traffic circles, curvilinear roads, narrowed intersections, and raised pedestrian [cross]walks), and/or conveniently placed collector roads that take travel time pressure off of local streets by providing connections between neighborhoods and between neighborhoods and commercial areas or main city gateway roads, etc. -- but not speed humps, bumps or significant gutters.

Mid-road subdivision entrance islands, placed as traffic calming devices and/or aesthetic planters, may be allowed at subdivision entrances provided they are placed at least ten-feet (10’) back from the end radius point of the entrance/exit on the inside of the subdivision. See standard City specifications.

16.35.080 Street trees.

B. Street Tree Specifications. At the time of planting, street trees shall have a trunk caliper of at least one and one-half inches at a location of eight inches above the soil line. Street trees shall be Class I types only, selected from the approved street trees listed in the city-approved street tree list established in accordance with subsection G of this section.

The Planning Commission recommended a 57-foot local right-of-way and changes to Table 16.35.130 to require 5-foot sidewalks, 6-foot park strips, 2 ½ foot curb and gutter, 6-foot emergency lanes, and 9-foot travel lanes rather than the 61-foot right-of-way with 5-foot sidewalks, 6-foot park strips, 2 ½ foot curb and gutter, 7-foot emergency lanes, and 10-foot travel lanes.

Discussion ensued clarifying the distance recommendations for mid-road islands.

Councilmember Gray advocated for requiring monuments to be placed to the side of the road rather than allowing mid-road islands.

Councilmember Burnham expressed concerns with widening the local road right-of-way width. Based upon her research, widening roads increases motorist speeds and accidents in neighborhoods. Traffic calming measures cause issues for snowplows and possibly for residents.

Mayor Westmoreland opened the public hearing at 10:09 p.m. As there were no comments, he closed the hearing.

Councilmember Wright explained that the purpose of requiring wider roads is to create more on-street parking spaces due to parking issues in the City. A 61-foot right-of-way would increase the asphalt in the travel and emergency lane area of a local right-of-way from 28 feet to 34 feet. The Planning Commission's recommendation for a 57-foot local right-of-way would only increase the asphalt area by two feet, which he thinks would not adequately address parking problems. Although he agrees with apprehension about the traffic calming measures, he feels they will help mitigate speed-related safety issues. The park strip area could remain five feet if desired by the other Councilmembers.

Mayor Westmoreland stated that if the park strip has trees, it needs to be wide enough to accommodate the roots of a full-grown tree to mitigate infrastructure damage.

Councilmembers Curtis and Gray stated their preferred width for the park strip depends upon the material or landscaping used.

Councilmember Love noted that park strips are nonfunctional turf.

Councilmember Curtis said he would prefer to exclude park strips rather than have xeriscape landscaping that is mostly or all rocks.

Councilmember Burnham noted the safety benefit of park strips creating a barrier between the street and the sidewalk. She is unsure how widening the road creates more on-street parking because local roads are wide enough to park on both sides of the street. She is concerned that wider roads with more cars parked along the street will increase motorists' speeds and provide less breaking distance and visibility when children enter the road from between parked cars. As such, she is unsure if she wants to encourage street parking.

Councilmember Curtis countered that residents are often unable to park in their garage or driveway when the vehicle exceeds the driveway length and is uncertain of another option than street parking.

Councilmember Love recognized the safety and other issues with street parking; nevertheless, especially considering the housing market, households frequently have more than two vehicles and need additional parking options. She advocated for the road to be wide enough for vehicles to be parked along both sides and for vehicles traveling in opposite directions to be able to pass one another slowly and cautiously. She feels widening the park strip is unnecessary given the water conservation objectives of the City. Despite the issues and inconveniences, bump outs provide a visual cue to remind motorists to watch for pedestrians.

Mr. Jerome explained that the City has received complaints from residents due to speeding vehicles on roads with 34 feet of asphalt.

Discussion ensued to determine the needed asphalt and curb and gutter width to provide parking on both sides of the street and two travel lanes promoting appropriate speeds and traffic calming measure options and impact.

UFA Battalion Chief Embret Fossum stated that narrow roads are difficult for fire apparatus to navigate. He advocated for a minimum of 34 feet of asphalt to provide turning radius and maneuverability for emergency vehicles. Nevertheless, he'll support the decision of the Council.

MOTION: *Councilmember Wright moved to approve an ordinance of Eagle Mountain City, Utah, amending Eagle Mountain Municipal Code Chapter 16.35 Development Standards for Required Public Facilities, Relating to Public and Private Rights-of-Way Standards as drafted and presented by staff and amending the local road standard and adjusting the table to reflect a 59-foot right-of-way with two of each of the following: 5-foot sidewalks, 6-foot park strips, 2 ½-foot curb and gutter, 6-foot emergency lanes, and 10-foot travel lanes.*
Councilmember Love seconded the motion.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Excused</i>
☐ Donna Burnham	☒ Donna Burnham	☐ Donna Burnham	☐ Donna Burnham
☒ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis	☐ Colby Curtis
☒ Jared Gray	☐ Jared Gray	☐ Jared Gray	☐ Jared Gray
☒ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love	☐ Carolyn Love
☒ Brett Wright	☐ Brett Wright	☐ Brett Wright	☐ Brett Wright

The motion passed with a vote of 4:1.

17. CITY COUNCIL/MAYOR'S BUSINESS

18. CITY COUNCIL BOARD LIAISON REPORTS

Councilmember Love

Councilmember Love noted a conflict between the scheduled City Council meeting and the Angel Garden Ceremony on December 6th.

Director of Administrative Services/City Recorder Fionnuala Kofoed said she would speak with the Cemetery Advisory Board and the City Council to determine regarding potentially moving the date of the ceremony.

Councilmember Curtis

Councilmember Curtis requested an update on the progress of the signage for the Senior Citizen Center.

Councilmember Burnham

None.

Councilmember Wright

Councilmember Wright said the Youth Council will assist with the Veteran's Breakfast on November 12th.

Councilmember Gray

Councilmember Gray said he met with the Library Board and there will be some vacancies later in the year.

19. COMMUNICATION ITEMS

19.A. Financial Report

19.B. Upcoming Agenda Items

20. ADJOURNMENT

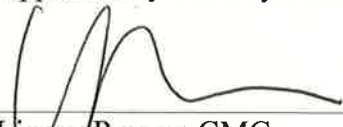
MOTION: *Councilmember Love moved to adjourn at 10:56 p.m. Councilmember Wright seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Excused</i>
☒ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>	☐ <i>Donna Burnham</i>
☒ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>	☐ <i>Colby Curtis</i>
☒ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>	☐ <i>Jared Gray</i>
☒ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>	☐ <i>Carolyn Love</i>
☒ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>	☐ <i>Brett Wright</i>

The motion passed with a unanimous vote.

The meeting was adjourned at 10:56 p.m.

Approved by the City Council on September 20, 2022.


Lianne Pengra, CMC
Chief Deputy Recorder

